

3 June 2025 / lmo - dti



29534/ICA3

ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria)

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Dear Mesdames and Sirs,

Further to the Secretariat's correspondence to ELCOMPONICS HOLDINGS B.V. ("Claimant") dated 27 May 2025, we notify the Request for Arbitration ("Request") to INVICTUS GMBH and INVICTUS CABLE GMBH ("Respondents").

Notification of a Request for Arbitration

The Secretariat notifies Respondents that, on 22 May 2025, it received the Request from Claimant represented by LUTHRA AND LUTHRA LAW OFFICES INDIA naming them as Respondents. Pursuant to Article 4(2) of the ICC Rules of Arbitration in force as of 1 January 2021 ("Rules"), this arbitration commenced on 22 May 2025.

In all future correspondence, any capitalised term not otherwise defined will have the meaning ascribed to it in the Rules and references to Articles of the Rules generally will appear as: "(Article ***)".

The Rules include the Expedited Procedure Provisions ("Provisions") (Article 30 and Appendix VI) which apply if the amount in dispute does not exceed the amounts referred to under Article 1(2) of Appendix VI, subject to the conditions set forth in Article 30(3). The parties can also agree on the application of these Provisions in all other cases.

International Chamber of Commerce | Chambre de Commerce Internationale (ICC)
Secretariat of ICC International Court of Arbitration | Secrétariat de la Cour Internationale d'Arbitrage

[iccwbo.org/arbitration](https://www.iccwbo.org/arbitration)

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We enclose for Respondents a copy of the Request and the documents annexed thereto (Article 4(5)).

The caption and reference of this arbitration are as follows: **29534/ICA3**

ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria)

Please include the reference **29534/ICA3** in all future correspondence.

ICC Case Connect

Your arbitration proceedings benefit from the ICC's Dispute Resolution Services case management digital platform. More information about ICC Case Connect powered by Opus 2 ("ICC Case Connect") is available at [ICC Case Connect Support](#).

Throughout your arbitration proceedings, you will benefit from a dedicated case space to facilitate communications and document-sharing. Parties and arbitral tribunals are encouraged to make use of this centralised case environment, although they remain free to determine the extent to which they do so. ICC Case Connect will constitute the Secretariat's principal means of communication throughout the proceedings (Article 3(2)), therefore case users should envisage that some interaction with the platform will be necessary.

Following the present notification of the Request by email, all persons indicated by Claimant as representing Respondents will receive an ICC Case Connect platform notification from "no-reply@iccwbo.org" inviting them to create an account (if they do not already have one), and to access their dedicated case space. If Respondents wish to include other users to their case space, please provide their email addresses and contact details.

You are encouraged to connect to ICC Case Connect promptly. You are invited to file future correspondence and submissions, including the Answer, or any request for an extension of time to submit the Answer, directly via ICC Case Connect.

Contact the dedicated ICC Case Connect helpdesk (caseconnect@iccwbo.org) for assistance and technical support. The ICC Case Connect platform notification inviting you to create an account is valid for 24 hours and can be reactivated by contacting the ICC Case Connect helpdesk. Once you have received the email notification inviting you to access your case space, you will be able to explore [ICC Case Connect](#).

Answer to the Request

Respondents' Answer to the Request ("Answer") is due within **30 days** (Article 5(1)).

As indicated above, we encourage Respondents to submit the Answer together with any exhibits via ICC Case Connect.

If Respondents submit the Answer by email, the number and/or the size of the exhibits may create a risk that the email may not be delivered. In this case, Respondents are kindly invited to send by email what they consider essential at this point, subject to filing the other exhibits at a later stage of the proceedings.

As provided in the Note to Parties and Arbitral Tribunals on the Conduct of the Arbitration under the ICC Rules of Arbitration ("Note"), hard copies should not be sent to the Secretariat, even when the arbitral tribunal asks to be provided with hard copies. Any hard copies sent to the Secretariat will be destroyed upon receipt.

Pursuant to Article 5(3), where Respondents request transmission of the Answer by delivery against receipt, registered post or courier, Respondents must submit a sufficient number of copies for each other party.

Respondents may apply for an extension of time for submitting the Answer (Article 5(2)).

If any of the parties refuses or fails to take part in the arbitration or any stage thereof, the arbitration will proceed notwithstanding such refusal or failure (Article 6(8)).

Joinder of Additional Parties

No additional party may be joined to this arbitration after the confirmation or appointment of any arbitrator, unless all parties including the additional party otherwise agree (Article 7(1)). Therefore, if Respondents intend to join an additional party and seek an extension of time for submitting the Answer, please inform us in your application for such extension.

Funding of Claims or Defences

In order to assist prospective arbitrators in complying with their duties, parties must promptly inform the Secretariat, the arbitral tribunal and the other parties of the existence and identity of any non-party which has entered into an arrangement for the funding of claims or defences and under which it has an economic interest in the outcome of the arbitration (Article 11(7)).

Constitution of the Arbitral Tribunal

When selecting arbitrators, parties are encouraged to consider diversity, broadly defined, including but not limited to racial, ethnic, cultural, generational, and gender diversity.

The arbitration agreement provides for one arbitrator.

Claimant proposes “*that the ICC Court appoint a suitable sole arbitrator with the following qualifications: (a) Extensive experience in international commercial arbitration, particularly involving joint venture disputes, shareholder agreements, and complex financial issues; (b) Familiarity with English law (the governing law of the SHA) and understanding of Austrian corporate law principles relevant to the dispute; (c) Financial understanding sufficient to comprehend accounting issues and expert evidence related to EBITDA calculations and financial statement analysis (d) Fluency in English (the language of the arbitration); (d) availability to conduct the arbitration efficiently with attention to the time-sensitive nature of Put Option enforcement.*”

We invite Respondents’ comments on Claimant’s suggestion in the Answer or in any request for an extension of time for submitting the Answer.

If the parties fail to nominate the sole arbitrator **within 30 days** from the receipt of the Request by Respondents or any additional time allowed by the Secretariat, the International Court of Arbitration of the International Chamber of Commerce (“Court”) will appoint the arbitrator (Article 12(3)).

Place of Arbitration

The arbitration agreement provides in relevant part that “*the seat of arbitration shall be Paris*”. Unless otherwise advised, we understand that Paris, France is the place of arbitration.

Language of Arbitration

The arbitration agreement provides for English as language of arbitration.

Provisional Advance

The Secretary General fixed a provisional advance of US\$ 45 000 to cover the costs of arbitration until the Terms of Reference are established (Article 37(1)), based on an amount in dispute partially quantified at US\$ 4 636 690, *i.e.*, EUR 4 100 000 for the principal claims and one arbitrator.

We enclose a table on the financial aspect of this arbitration (“Financial Table”) and a Payment Request for Claimant that indicates the amount to be paid and when such payment is due.

Neither the Court nor the Secretary General will take any decisions until we receive such payment.

Publication of Information on the Website

Pursuant to section “Publication of Information Regarding Arbitral Tribunals, Industry Sector and Law Firms Involved” of the Note, the Court publishes on its website information regarding the names of the arbitrators, their nationality, their role within a tribunal and the method of their appointment, the parties’ representatives in the case, the industry sector involved and whether the arbitration is pending or closed. Such information is published after the Terms of Reference have been transmitted to or approved by the Court, or after the Case Management Conference in cases where the Expedited Procedure Provisions apply, and will be updated in the event of a change in the party representation (without however mentioning the reason for the change). In this respect, the Court publishes such information unless any of the parties objects.

Publication of Awards

Pursuant to section “Publication of Awards, Procedural Orders, Dissenting and/or Concurring Opinions” of the Note, any award and/or order, as well as any dissenting and/or concurring opinion (“awards and related documents”) which may be made in the case, may be published in their entirety, including the names of the parties and the arbitrators, no less than two years after the date of said notification. The parties may agree to a longer or shorter time period for publication. Considering that awards and related documents may be published, arbitral tribunals are encouraged to include in their award a list of names of relevant individuals or entities involved in the case.

Parties and/or their representatives should consider the relevant applicable laws and establish whether any legal requirements or limitations may prevent the publication of awards and related documents, and inform the arbitral tribunal and the Secretariat accordingly. Any information in this regard available to the Secretariat will be communicated to the parties and the arbitral tribunal.

We note that a confidentiality agreement exists covering certain aspects of the contract. Therefore, publication will be subject to the parties’ specific consent. They can opt for publication by letting us know of their consent that any award and related documents be published within **30 days**. They may also consent that any award and related documents be in all or part anonymised (removal of names and any contextual data that may lead to identification of individuals, parties or disputes) or pseudonymised (replacement of any name by one or more artificial identifiers or pseudonyms), in which case it will be upon the parties to agree on the redactions or accept the redactions proposed by the Secretariat. In case of publication, we will send the draft to the parties and/or their representatives for their information, by using the contact details indicated in the award or any contact details subsequently provided.

Efficient Conduct of the Arbitration

The Rules require the parties and the arbitral tribunal to make every effort to conduct the arbitration in an expeditious and cost-effective manner having regard to the complexity and value of the dispute (Article 22(1)).

In making decisions as to costs, the arbitral tribunal may take into account such circumstances as it considers relevant, including the extent to which each party has conducted the arbitration in an expeditious and cost-effective manner (Article 38(5)).

Parties, counsel and arbitral tribunals are encouraged to consider implementing case management techniques designed to make arbitration fair and efficient (Appendix IV to the Rules). The Note also provides guidance on the organisation of conferences or hearings, including conducting such conferences and hearings by audioconference, videoconference, or other similar means of communication (see section “Conduct of the Arbitration” of the Note).

Amicable Settlement

Parties are free to settle their dispute amicably at any time during an arbitration. The parties may wish to consider conducting an amicable dispute resolution procedure pursuant to the ICC Mediation Rules, which, in addition to mediation, also allow for the use of other amicable settlement procedures. ICC can assist the parties in finding a suitable mediator. Further information is available from the ICC International Centre for ADR at +33 1 49 53 30 53 or adr@iccwbo.org or www.iccadr.org.

Representation

All future correspondence addressed to Claimant will be sent solely to LUTHRA AND LUTHRA LAW OFFICES INDIA.

If Respondents are represented by counsel, we invite Respondents to provide the relevant contact details.

Each party must promptly inform the Secretariat, the arbitral tribunal and the other parties of any changes in its representation (Article 17).

Communication with the Secretariat

We invite Respondents to provide their contact details including their email addresses.

Parties should ensure that their contact details, and/or those of their counsel, are always up to date. Such persons will be authorised to access and communicate via ICC Case Connect. The information on record can be verified in the case details section of your ICC Case Connect case space. To inform the Secretariat of any changes in your representation, please contact your case management team.

Your Case Management Team

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While maintaining strict neutrality, we are at the parties' disposal regarding any questions they may have concerning the application of the Rules.

The Note highlights certain key features of ICC arbitration which also includes key features of the Expedited Procedure Provisions. We also enclose a Case Information.

Finally, we invite you to visit our website at www.iccarbitration.org to learn more about our Dispute Resolution services.

Yours faithfully,



Dimitra A. Tsakiri
Counsel
Secretariat of the ICC International Court of Arbitration

- encl. - Request for Arbitration with documents annexed thereto 22 May 2025
 - Case Information
 - Financial Table
 - Payment Request (*for Claimant*)

Enclosures available via ICC Case Connect:

- All correspondence exchanged to date (including a copy of the present correspondence and its annexes)
- ICC Rules of Arbitration
- Note to Parties and Arbitral Tribunals on the Conduct of the Arbitration under the ICC Rules of Arbitration
- Explanatory Note on VAT Applicable on ICC Administrative Expenses